

		responses.” (Id., ¶ 6, Ex. B.) Defendants next served a meet and confer letter regarding the outstanding supplemental responses on September 11, 2024, and September 18, 2024, but received no supplemental responses as of October 24, 2024. (Id., ¶¶ 7-9, Exs. C and D.) The instant motion was filed on October 24, 2024, nearly a year after Defendants’ received Plaintiff’s responses on October 23, 2023. The foregoing evidence indicates that Plaintiff requested a 30-day extension to respond, and agreed to an extension for Defendants to file a motion to compel after receipt of the supplemental responses, but Defendants provide no evidence showing that Defendants granted Plaintiffs’ request. As a result, Defendants do not show an agreement in writing to extend the deadline to file any motion to compel further responses, let alone to a “specific later date.” In addition, while Defendants’ counsel provides that Plaintiff “agreed to an open extension for Defendants to file their motion to compel further responses, after receipt of Plaintiff’s supplemental responses,” Code of Civil Procedure sections 2030.300(c) and 2031.310(c) provides for an extension to file a motion to compel “on or before any specific later date.” An open extension after receipt of Plaintiff’s supplemental responses does not constitute a “specific later date.” Based on the foregoing, Defendants fail to show that the instant motions to compel were timely. Thus, the motions are DENIED in their entirety. <i>Defendants to give notice.</i>
106	Moreno vs. James R. Glidewell, Dental Ceramics, Inc. 24-01380333	<i>Off-calendar.</i>
107	BRHE Group vs. Bates 24-01379502	Defendants Davide Bates CPA/AVA and Jeffrey Reiss CPA/MST move for an order deeming Bates and Reiss to be the prevailing parties as to the now-dismissed first and second causes of action in Plaintiff’s Complaint and for an award of attorney fees and costs.

	The court held a hearing on this motion on 03/06/2025. After oral arguments, the court continued the hearing on the motion to 04/17/2025 and granted leave for the parties to file supplemental briefs pursuant to the briefing schedule set forth in the order. After considering the supplemental briefing, the Court ADOPTS the tentative in its 03/06/2025 Minute Order as the final order. (ROA 262.) The Court agrees with Plaintiff that the Court did not make a finding on the merits of the allegations in the Complaint against Defendants Davide Bates CPA/AVA and Jeffrey Reiss CPA/MST. This does not, however, preclude an award of attorney fees pursuant to paragraph 16 of the Agreement for Sale of Assets. In its 10/31/2024 Minute Order, the Court relied on paragraph 16 of the Agreement for Sale of Assets to find that the parties needed to mediate their dispute before filing suit. Put another way, Defendants' demurrer was a motion to enforce the provision of paragraph 16 of the Agreement for Sale of Assets that required the parties to participate in mediation before a lawsuit could be filed. Paragraph 16 of the Agreement for Sale of Assets expressly states: "The provisions of this paragraph may be enforced by any Court of competent jurisdiction and the prevailing party shall be entitled to an award of all costs fees and expenses including attorneys fees to be paid by the non-prevailing party." This sentence, and paragraph 16 in general, does not require that the Court make a finding on the merits of the Complaint in order for a party to be awarded attorney fees. Rather, paragraph 16 expressly states that a party who prevails in moving to enforce the arbitration provision "shall be entitled to an award of all costs fees and expenses including attorneys fees to be paid by the non-prevailing party."
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		Defendants state that they are not relying paragraph 13 in moving for attorney fees. The Court notes that Paragraph 13 supports a finding consistent with that of paragraph 16. Paragraph 13 states that “[i]n the event either party breaches any obligation under this Agreement the non-breaching party shall be entitled to all costs and expenses incurred including reasonable attorney fees as a result of the breach.” Again, the court found in its ruling on the demurrer, that Plaintiff breached its obligation in paragraph 16 when it filed the Complaint before participating in mediation. Notably, Plaintiff spends much of the supplemental opposition discussing and distinguishing <i>Haidet v. Del Mar Woods Homeowners Association</i> (2024) 106 Cal.App.5th 530. As seen in the Court’s tentative in its 03/06/2025 Minute Order, the Court did not rely on <i>Haidet v. Del Mar Woods Homeowners Association</i> (2024) 106 Cal.App.5th 530 in reaching its conclusion in the 03/06/2025 tentative. For these reasons, the Court is not persuaded by the supplemental briefing to change the tentative ruling in its 03/06/2025 Minute Order. The Court ADOPTS the tentative ruling in its 03/06/2025 Minute Order. (See ROA 262.) <i>Moving parties to give notice.</i>
108	IDYLLWILLOW LP vs. Berkadia Real Estate Advisors Inc. 20-01146587	<u>MOTION FOR ATTORNEY’S FEES</u> Plaintiff Idyllwillow LP (“Plaintiff”) moves for an order granting it attorney fees incurred in proving that Defendants Berkadia Real Estate Advisors Inc. and Joe Leon (“Defendants”) were Plaintiff’s broker and agent pursuant to Code of Civil Procedure section 2033.420. “If a party fails to admit the genuineness of any document or the truth of any matter when requested to do so under this chapter, and if the party requesting that admission thereafter proves the genuineness of that document or the truth of that matter, the party requesting the admission may move the court for an order requiring the party to whom the request was directed to pay the reasonable expenses incurred in making that proof, including reasonable attorney’s fees.” (Code Civ. Proc. § 2033.420(a).)